

Body:	Legal (GA6)
Issue concerned:	Addressing the legality of state-sponsored operations
Main submitter:	The United States of America
Co-submitter:	State of Israel, Ukraine, Republic of El Salvador
Signatories:	French Republic, United Arab Emirates, the Kingdom of Netherlands, the Republic of Honduras, Republic of Colombia, Republic of Iceland, the Kingdom of Norway, Japan, Federal Republic of Germany, Republic of Finland, Kingdom of Denmark, Dominion of Canada, United Kingdom of Great Britain and Northern Ireland

The Legal (GA6) Committee,

Guided by the Charter of the United Nations, particularly Article 2, paragraph 4, regarding the prohibition of the threat or use of force against the territorial integrity of any state,

Recalling the 1949 Geneva Conventions and their 1977 Additional Protocols,

Reaffirming the principles of international law, including sovereignty, non-interference, and the peaceful settlement of disputes,

Deeply concerned by the increasing legal complexity of international cybercrime and the lack of a comprehensive international framework for prosecuting non-state actors,

Noting with approval the reports of the International Law Commission (ILC) regarding the legal obligation to prosecute or extradite (*aut dedere aut judicare*),

Taking note of the advisory opinions of the International Court of Justice (ICJ) concerning the legal consequences of unlawful occupation,

Stressing the importance of strengthening international humanitarian law to protect civilians in non-international armed conflicts,

Recognizing the need to harmonize domestic legislation with international treaty obligations,

Emphasizing that all efforts to combat terrorism must comply with international human rights law, refugee law and humanitarian law.

Reiterating the need to strictly respect the primacy of the United Nations Security Council and the role of the UN Charter;

1. **Invites** states to create an international fund, the “Hybrid Security and Resilience Fund” (HSRF), that would support coordinated international responses to state-sponsored operations and hybrid threat activities conducted by both state and non-state actors that operate below the threshold of a grey-zone hybrid, kinetic, or cyber operation and will be financed by:

- a. The International Monetary Fund, hereinafter IMF, which will allocate 0.00045% of its financial resources,
- b. Member States which will voluntarily contribute to the aforementioned fund, having in mind:
 - i. that the minimum assistance will be decided in collaboration with the ECOFIN committee, considering each country's GDP,
 - ii. Member States should ensure the flow of investment in place of countries at war, in place of countries affected by wars, natural disasters or human crises, with these amounts being transformed into loans that the respective countries will later repay;

2. **Proposes** the creation of an International Digital Program through which Member States will benefit from access to the Cybersecurity Code Reserve in case of harmful state-sponsored operations by:

- a. granting nations access to the International Cybersecurity Reserve, which will strengthen the country's capabilities in combating cyber threats such as serious cyber attacks on critical infrastructures, including government IT systems, websites, power networks, or other critical facilities,

- b. ensuring protection of this program by the United Nations Ad Hoc Committee on Cybercrime, so it would not be used for illicit purposes by participating states;

3. **Designates** a team of investigators appointed by the Office of Legal Affairs (OLA) and the UN legal team that establishes both the scale of the operation and the probability of an armed attack, according to policy standards, defining if a state-sponsored operation is considered a “use of force” or an “armed attack”;

4. **Calls upon** the submittal of a detailed report containing all operations conducted by all state-sponsored organisations of each member state, to be further analysed by the UN-appointed team of investigators aforementioned;

5. **Recommends** the creation of a new coalition, named “The Article 51 Rapid Response Coalition,” hereinafter ARC, which would unite willing member states under a legal framework for collective response to state-sponsored threats occurring below the threshold of an armed attack, by establishing a coordinated system for fast intelligence sharing, joint action, and synchronized response measures through means such as, but not limited to:

- a. establishing secure communication channels and a coordination platform for member states in order to foster real-time communication and information sharing between member states,
- b. issuing joint attribution statements within 48 hours after the confirmation of an incident, based on shared intelligence and agreed-upon verification standards, in order to ensure a common and unified response between member states,
- c. facilitating common coordinated response measures upon member states, including diplomatic actions, targeted economic sanctions, trade restrictions, and financial countermeasures, implemented in line with domestic legal frameworks and international law,
- d. providing technical and operational assistance to affected states where critical infrastructure is compromised, including but not limited to cyber defence support, resilience reinforcement, and secured technology sharing, as well as facilitating recovery efforts,

- e. establishing a yearly rotating chairmanship among member states in order to ensure equitable leadership, with the presiding state responsible for calling together the fast consultation procedures and, at the same time, overseeing the administrative functions of the ARC for the duration of their term,
- f. conducting joint simulations, two to three times a year, involving both diplomatic and technical experts from member states in order to evaluate the efficiency of the organisation,
- g. activating a fast consultation procedure between member states,
- h. Financing all the aforementioned initiatives through the fund mentioned in OC 1;

6. **Endorses** the implementation of stricter sanctions, through the United Nations Security Council Sanctions Committee, and referral of severe cases of violations of international law to appropriate judicial bodies, which will have the mandate to investigate and respond to actions carried out by state-sponsored actors, with regard to:

- b. states, measures commensurate with the severity of the violation, including but not limited to:
 - i. restricting international travel for high ranking government, military and intelligence officials,
 - ii. restrictions on trade and foreign investment,
 - iii. closing airspace and seaports to vessels and aircraft registered or operated by the violating state,
- c. state-sponsored organisations operating without the approval of the state, such as but not limited to immediate freezing of assets and economic resources of individuals and entities found guilty of engaging in the aforementioned violations;

7. **Calls upon** implementing an international policy in order to define if a state-sponsored operation is considered a “use of force” or an “armed attack” through actions such as, but not limited to:

- a. reminding that an armed attack is precisely any act that intrudes or harms national integrity through third-party actors, such as:
 - i. private military companies (PMC),

- ii. state-backed hacker organisations,
 - iii. any act of governmental espionage that violates the state's security or independence,
- b. mentioning that, even if a state-sponsored operation falls under the category of "use of force", any act that constitutes a use of force is permitted in situations such as:
 - i. the United Nations Security Council's authorization with the purpose of maintaining or restoring international peace under Chapter VII,
 - ii. self-defense acts, according to Article 51 of the UN Charter, which allows for the inherent right of self-defense if an armed attack occurs,
 - iii. consent from the territorial state which further allows for force to be used;
- c. making an extensive list, where all possible state-funded operations will be placed in the rightful category, either as a "use of force" or an "armed attack",
- d. organising a mandatory meeting with representatives from all Member States, where diplomats will get the chance to express all of their concerns regarding the list;

8. **Proposes** the addition of new laws, meant to proscribe foreign state-backed groups that have been established or recognized as capable of violating another State's sovereignty and engaging in actions that threaten another nation's security and, if violated, will result in sanctions as mentioned in OC 5;

9. **Hopes** for an established set of standardized security audits and transparency requirements for any state-linked corporation providing telecommunications, energy or data services, to prevent the weaponization of technology, and the development of an international Trusted Vendor framework for critical infrastructure. As modern state-sponsored espionage often relies on hardware and software backdoors embedded during the manufacturing process, all the aforementioned information and all state manufacturers should:

- a. provide frequent up-to-date information in an official database about the manufacturing process,
- b. comply with all standardized security audits and transparency requirements,

- c. supply valid and accurate justification whenever asked for or put under scrutiny on suspicions of the manufacturing of hardware or software that could be used for malicious purposes by the government, rebels, hackers etc,
- d. face proper consequences and sanctions if found guilty of the interference in the illegal manufacturing of the aforementioned;

10. **Encourages** the codification of the 'Scale and Effects' test, which is not codified in any treaty or international convention, such as the UN Charter, to determine whether a state-sponsored operation constitutes a use of force or armed attack; thus, we propose an international treaty and an objective board responsible for:

- a. validating or not if a country is responsible for funding or directing an illegal sponsored operation based on forensic analysis and solid proof,
- b. judging if a country should be held financially accountable for the damage caused through state-sponsored operations;

11. **Affirms** that the principles of the Charter of the United Nations, particularly Article 2(4), must apply in the discussion of state conduct in cyberspace and that the prohibition on the use of force is not limited to physical weapons by proposing the implementation of sanctions that will motivate countries to respect Article 2 (section 4), such as the ones posed in OC 6;

12. **Recommends** the adoption of an impactful and powerful approach to assess whether a cyber operation constitutes a "use of force" under international law, focusing on the scale and effects of the operation rather than its method, such as, but not limited to:

- a. irreversible damage to critical physical infrastructure or the direct and indirect loss of life resulting from digital interference,
- b. significant and widespread disruption of essential public services or of the national economy could lead to a socioeconomic collapse;

13. **Calls for** Member States to conduct international cooperative investigations in case of any inflicted state-sponsored operations by:

- a. universally acknowledging any attack of this sort,

- b. proposing the creation of regional cooperative frameworks, in order to harness true international support and trustworthy joint investigations, transparent communication and more rapid responses to possible state-sponsored interferences,
- c. taking part in the attacked Member States' research, in order to:
 - i. gain efficiency in the process of attribution,
 - ii. benefit from better resources, especially in the case of developing states,
 - iii. promote a strong support system and remain solidary to shared principles,
 - iv. establish a common standard for evidence in order to ensure the findings are globally respected,
- d. Guaranteeing the safety of the investigation by:
 - i. protecting the sensitive data and intelligence shared between members by guaranteeing that it will only be used for attribution and not shared with outside parties,
 - ii. safeguarding the involved experts and technical teams from any form of legal or political retaliation,
 - iii. translating findings into technical "warning signs" so all Member States could immediately update their defenses against the specific threat;

14. **Encourages** all Member States to take into consideration joining cyber-related treaties, such as, but not limited to:

- a. The Tallinn Mechanism, a legal international framework for coordinating civilian cyber assistance and to advocate for its expansion in order to ensure that all states can facilitate it, thereby strengthening democratic institutions and combating state-caused disruptions,
- b. The Budapest Convention on Cybercrime (2001) was the Council of Europe's first international treaty on cybercrime, establishing cooperation for investigating state-sponsored cyberattacks and criminalizing illegal access and data interference while enabling cross-border evidence sharing,
- c. The "Paris Call for Trust and Security in Cyberspace" (2018) condemns malicious cyber operations and endorses norms against targeting critical infrastructure,
- d. The Tallinn Manual 2.0, finalized in 2017 and developed by NATO's Cooperative Cyber Defence Centre of Excellence, confirms that cyber operations qualify as justified and

proportionate self-defence under Article 51, when preventing physical destruction equivalent to kinetic attacks,

- e. The UN Cybercrime Convention (2024) represents the first comprehensive treaty that enables cross-border cooperation and technical assistance against cybercrime;

15. **Recommends** the establishment of a permanent United Nations Attribution Support Office (UNASO) under the oversight of the Legal Committee, with the aim to create a public Global Attribution Index, which will:

- a. develop a technical database that ranks state-sponsored operations, based on attribution confidence, using standardized evidentiary criteria,
- b. focus on building the capacity of technology, with yearly ad-hoc investigation in developing nations, through knowledge sharing and resource allocation, and by respecting all criteria mentioned in OC 3,
- c. publish annual reports identifying tools, techniques, and patterns of abuse that threaten international peace, global stability, and critical infrastructure,
- d. allow member states to reserve specific technical details for national security purposes,
- e. establish an expert panel that focuses on gathering fact-based information regarding the aforementioned allegations, which should include:
 - i. UN independent experts who focused on different aspects,
 - ii. that is fixed at three-year term of office,
 - iii. the panel must submit an annual detailed report on their work, in order to ensure transparency;

16. **Endorses** to remain actively seized on the matter.